The proposed order lodged with the court will be processed forthwith.

The court appreciates that while a meet and confer is not required by the Code of Civil Procedure, attorney Carr still made the effort.

Capital One N.A. v. Jose Melchor
Case No. CL25-11075

Motion to Set Aside/Vacate Dismissal and Enter Judgment

TENTATIVE RULING:

Plaintiff moves to set aside the dismissal of this action and for entry of judgment pursuant to a stipulation.

Plaintiff's motion is DENIED WITHOUT PREJUDICE.

Defendant JOSE MELCHOR's first appearance in this action was when Plaintiff caused the filing of a stipulation and paid Defendant's first appearance fee. Defendant has never formally appeared in this action and the stipulation fails to state an appearance. The court has no ability to determine whether the mailed notice was adequate to provide Defendant with due process.

A confession of judgment without notice and opportunity to be heard violates due process. (See *Isbell v. County of Sonoma* (1978) 21 Cal.3d 61.)

Reflecting due process concerns, service of a motion affecting the rights of a defendant who has not appeared in an action typically is required to be made in the same manner as required for service of summons and complaint. (See, e.g., applications for writs of attachment [Code Civ. Proc, § 482.070, subd. (d)]; applications for writs of possession [Code Civ. Proc., § 512.030, subd. (b)].)

MIGUEL HERRERA GARCIA, individually and on behalf of other members of the general public similarly situated, vs. CHAMPION SCAFFOLD SERVICES INC. Case No. CU24-06466

Motion for Final Approval of Class Action and PAGA Settlement

TENTATIVE RULING:

Parties to appear.

Plaintiff MIGUEL HERRERA GARCIA moves for final approval of the settlement reached with Defendant CHAMPION SCAFFOLD SERVICES The settlement concerns a class action involving alleged wage and hour violations, unreimbursed business expenses, violation of Business and Professions Code sections 17200 et seq. and PAGA penalties.

The court has not received opposition to the motion.

In a class action the court has broad discretion to determine whether a settlement was fair and reasonable In reviewing the fairness of a settlement due regard must be given to what is otherwise a private, consensual agreement between parties. Review for fairness is limited to the extent necessary to reach a reasoned judgment that the agreement is not the product of fraud, overreaching, or collusion and that the settlement as a whole is fair and reasonable to all concerned.   Considering reasonableness means weighing factors such as the strength of the plaintiffs' case, the risk and expense of further litigation, the amount of settlement, the risk of maintaining class action status through trial, the experience of counsel, the presence of a governmental participant, and class members' opinions of the settlement. Fairness is presumed where a settlement is the product of arm's-length negotiation conducted after sufficient investigation and discovery to allow intelligent decisions, counsel is experienced in similar litigation, and the percentage of objectors is small. (*Cellphone Termination Fee Cases* (2010) 186 Cal.App.4th 1380, 1389.)

On December 4, 2025, this court granted preliminary approval of the proposed settlement. Those findings are incorporated by reference.

The class period is from August 26, 2020 through September 22, 2025 with 297 members. The PAGA period is from September 9, 2023 through September 22, 2025. The gross settlement is $750,000. There have been no objections from class members and no class members have opted out.   Unfortunately 55 notices were returned as undeliverable but after skip-trace efforts only 29 notices are now considered undeliverable. The highest estimated payment is $10,849.75 and the lowest $41.25 with the average at $1417.26.

The settlement of $37,500 for PAGA penalties with distribution of 65% to LWDA and 35% to aggrieved employees is reasonable.

The court finds an enhancement award to the named plaintiff of $6,000 –not $10,000-- is reasonable given the actual results in this case and the 20 hours he expended.   The court does not find the statement that plaintiff believed he could be responsible for attorneys' fees and costs to be credible given the contingent nature of Plaintiff's counsel's representation and the type of litigation.

The costs of the settlement administrator of $7,990 are reasonable.

The court approves $21,171.26 in reimbursement for reasonable costs incurred by plaintiff's counsel.

The court finds that while counsel is experienced in this type of litigation, the suit did not involve any active litigation, was 100% remote, and used largely cookie-cutter pleadings (although they were some of the better ones the court has reviewed). Wage and hour class action cases are now considered fairly routine and common. Counsel's fee request for one-third of the gross settlement - $250,000 - is excessive and would result in an overall hourly rate of $1,250 which is not reasonable. The hourly rates claimed by class counsel are excessive by Solano County and Northern California standards. It is also unclear why so many experienced attorneys touched this file which results in a greater number of claimed hours than necessary. (Gomez Decl ¶ 18.)

An award of 25%, or $187,500, is reasonable and results in a fee award with a lodestar that is more consistent with Solano County and Northern California rates and allows for a modest multiplier but ensures that the class members who have been injured are adequately compensated.

Plaintiff to prepare the order after hearing and Judgment and defense shall approve as to form pursuant to California Rules of Court, rule 3.1312.

This matter is calendared for dismissal hearing on March 4, 2027 at 8:30. Counsel and settlement administrator shall file a declaration fifteen calendar days prior to confirm that all funds have been distributed and the unclaimed funds have been deposited with the State.

NO NAME GIVEN MOHIT v. AMERICAN HONDA MOTOR CO., INC.
Case No. CU25-07798

Plaintiff's Motion to Compel Further Responses to Requests for Production and Special Interrogatories

<u>TENTATIVE RULING</u>

Plaintiff NO NAME GIVEN MOHIT moves to compel Defendant AMERICAN HONDA MOTOR CO., INC. to further respond to sixteen of his requests for production, set one and eleven of his special interrogatories, set one. Plaintiff alleges breaches of express and implied warranties under the Song-Beverly Consumer Warranty Act in relation to his purchase of a 2025 Honda Accord hybrid car (the "Vehicle") manufactured and warrantied by Defendant.

Notice of Tentative Ruling. Plaintiff's notices of motion do not advise the recipient that the Solano County Superior Court uses a tentative ruling system, as is required under Local Rule 3.9, subdivision (d). Plaintiff is cautioned to observe local rules going forward.

Meet and Confer Efforts. The court first considers the adequacy of the parties' efforts to meet and confer to work these issues out before resorting to a motion to compel further responses. Code of Civil Procedure section 2016.040 requires a declaration "showing a reasonable and good faith attempt at an informal resolution of each issue